

The Wild Life (Protection) Licensing (Additional Matters For Consideration) Rules, 1983

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Union of India - Act

The Wild Life (Protection) Licensing (Additional Matters For Consideration) Rules, 1983

UNION OF INDIA

India

The Wild Life (Protection) Licensing (Additional Matters For Consideration) Rules, 1983

Rule THE-WILD-LIFE-PROTECTION-LICENSING-ADDITIONAL-MATTERS-FOR-CONSIDERATION-RULES-1983 of 1983

Published on 13 April 1983

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The Wild Life (Protection) Licensing (Additional Matters For Consideration) Rules, 1983

Published vide Notification G.S.R. 328(E), dated 13.4.1983, published in the Gazette of India, Extraordinary, Part 2, Section 3(i), dated 13.4.1983.

1076.

In exercise of the powers conferred by clause (a) of sub-section (1) of section 63, read with clause (b) of sub-section (4) of section 44 of the Wild Life (Protection) Act, 1972 (

53 of 1972

), the Central Government hereby makes the following rules, namely:-

1.

Short title, extent and commencement .-(1) These rules may be called The Wild Life (Protection) Licensing (Additional Matters for Consideration) Rules, 1983.

(2)

They shall extend to the whole of India except the State of Jammu and Kashmir.

(3)

They shall come into force on the date of their publication in the Official Gazette.

2.

Definition .-In these rules, unless the context otherwise requires, "Act" means the Wild Life (Protection) Act, 1972 (53 of 1972

).

3.

Additional matters for consideration for grant of licence under section 44 of the Act .-For the purposes of granting a licence referred to in sub-section (1) of section 44 of the Act, the Chief Wild Life Warden or the authorised officer, as the case may be, shall, in addition to the matters specified in clause (b) of sub-section (4) of that section, have regard to the following other matters, namely:-

(i)

capacity of the applicant to handle the business concerned with reference to facilities, equipment and suitability of the premises for such business;

(ii)

source and the manner in which the supplies for the business concerned would be obtained;

(iii)

number of licences for the relevant business already in existence in the area concerned;

(iv)

implications which the grant of such licence would have on the hunting or trade of the wild animals concerned:

Provided that no such licence shall be granted if the said implications relate to any wild animal specified in Schedule I or Part II of Schedule II to the Act, except with the previous consultation of the Central Government.

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